

1 _____ BILL NO. _____

2 INTRODUCED BY _____

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4 A BILL FOR AN ACT ENTITLED: "AN ACT REVISING CAMPAIGN FINANCE LAWS; PROHIBITING AN
5 INDIVIDUAL WHO IS A NONRESIDENT OF THE STATE FROM MAKING A DISBURSEMENT FOR AN
6 ELECTIONEERING COMMUNICATION, A CONTRIBUTION, OR AN EXPENDITURE CONCERNING
7 CONSTITUTIONAL INITIATIVES; PROHIBITING THE SOLICITATION, ACCEPTANCE, OR RECEIPT OF A
8 CONTRIBUTION, EXPENDITURE, OR DISBURSEMENT OF A NONRESIDENT OF THE STATE
9 CONCERNING CONSTITUTIONAL INITIATIVES; AND PROVIDING A PENALTY."

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11 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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13 NEW SECTION. **Section 1. Prohibition on nonresident interference in constitutional initiatives.**

14 (1) It is unlawful for an individual who is not a resident of the state, as provided under 13-1-112, directly or
15 through an intermediary, to make a disbursement for an electioneering communication, a contribution, or an
16 expenditure, or make an express or implied promise to make a contribution or an expenditure, in connection
17 with any constitutional initiative.

18 (2) It is unlawful for a person to solicit, accept, or receive a contribution, expenditure, or
19 disbursement described in subsection (1) from an individual who is not a resident of the state, as provided
20 under 13-1-112.

21 (3) A person who violates subsection (1) or (2) is liable in a civil action pursuant to 13-37-128.

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23 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
24 integral part of Title 13, chapter 37, part 2, and the provisions of Title 13, chapter 37, part 2, apply to [section 1].

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